FERRERO

Ferrero India Private Limited (IMSOFER DIVISION)
2nd Floor, Pentagon Tower – 1 , Magarpatta City, Hadapsar
Pune – 411 028 , Maharashtra, India
VAT Reg NO: 27465208692V Dt. 06.08.2008
CST Reg NO: 27465208692C Dt. 06.08.2008
PAN No: AAACF8110B ECC No: AAACF8110BEM001

Purchase order

PO number/date/Doc.Type/Description
7008009310 29.05.2017 Z108 Technical Materials

Ms NIHVA TECHNOLOGIES PVT LTD
Sameer Plaza, First Floor, G-Block
411019 Thermax Chowk, Pune
Teleph./Fax: +91 +91-8551091333 / +91-8551091333
Your vendor number with us: 123352

UP-Order: UTILITY
Buyer: nilesh borisa
Telephone: 02112 662100
E-mail: narayan.jahagirdar@ferrero.com
Purchasing Reference: Narayan Jahagirdar
02112-662200 narayan.jahagirdar@ferrero.com
Preq number - Requisitioner
172750214 / UKARANDE Mahendra

Terms of payment: 1 month, invoice date, end of month

Please deliver to:
Ferrero India Pvt Ltd – IMSOFER DIVISION
Plot No. F-13 , M.I.D.C.
413133 BARAMATI, PUNE
INDIA
Delivery date: 30.06.2017

Currency: INR

Invoice must contain the Ferrero order number

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1. Refer your quotation # SQT/17-18/0076 dated 19-05-17 and subsequent discussion on it.
2. Please note that invoicing & delivery address should be strictly as:
Ferrero India Pvt. ltd.
F-13 MIDC, Baramati-413133, Dist.: Pune.
3. Consignment and documents to be addressed to: Technical Stores". Contact number 02112-662200/662330. Consignment should contain original invoice and delivery challan else delivery will be rejected. While sending by courier required one copy of invoice with courier docket for gate entry (outside packing).
4. Delivery: Partial delivery will not be accepted.
5. Prices: F.O.R our factory Baramati inclusive of P&F, freight & transit insurance charges.
6. Payment: Within 30 days of delivery. All advance / regular/ retention payment, bank guarantee, C form , TDS certificate , taxation related queries to be first addressed to Mr. Dattatray Nalawade email dattatray.nalawade@ferrero.com tel 02112-662200. You can escalate the matter to Ms. Aarti Kalidas (aarti.kalidas@ferrero.com)
7. Validity for PO is 3 months.
8.13.5% VAT and NIL Excise duties extra. Kindly mentioned above taxes extra on your invoice.
9. Delivery strictly as per schedule, within 07 days from the date of intimation.
10. Penalty @1% to max 5% will be applicable if delivery happened beyond request.

Item	Material	Description	Order qty.	Unit	Price/Unit	Net Value
00010		*DOCK SHALTER 3400MM X 3400MM*	*3.000*	*ST*		

Price schema	Price/Unit	Rate	Rate/Unit	Units	Condition Value
Gross Price	115,000.00	INR	1	ST	345,000.00
Taxes on the PO					46,575.00
A/P VAT RM Deduct	13.50	%			46,575.00

Continue

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Item	Material	Description	Order qty.	Unit	Price/Unit	Net Value
00020		*INSTALLATION CHARGES FOR ABOVE DOCK SHAL*				

Price schema	Price/Unit	Rate	Rate/Unit	Units	Condition Value
Gross Price	30,000.00	INR	1	AU	30,000.00
Taxes on the PO					4,350.00

Position contains the following services:

Service	Description	Order qty.	Unit	Price/Unit	Net Value
	INSTALLATION CHARGES FOR ABOVE DOCK SHAL	3.000	ST	10,000.00	30,000.00

Total net value INR: 375,000.00

Continue

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Release strategy	Date	12.06.2017	14.06.2017
	Electronically Signed		
IY-0M	by	N.JAHAGIRDAR	A.KALIDAS

AND CONDITIONS OF PURCHASE

1- SPECIFICATION

All goods must be strictly of the approved specimen in terms of quality, quantity, description, specification, weight and measurement. Any variation, unless previously agreed to and confirmed by us in writing, shall lead to automatic rejection of the order and no liability will accrue to us for such rejection.

2- PACKING AND FORWARDING

a) Wherever as per the terms of contract, title to the goods does not pass to us on delivery of the goods to the transporter, it shall be your responsibility to arrange for secure packing and safe delivery. Short delivery, breakages or damages will be deducted pro-rata from bills unless replaced with goods of identical specifications free of cost.

b) We will not, an any event, accept any responsibility for loss of damage to goods in transit.

c) Packing and forwarding charges will not be paid unless previously agreed and approved.

3- DELIVERY

a) We retain the right to inspect the goods before the delivery.

b) You shall arrange to deliver the goods as advised by us and on failure we reserve the right to rescind the order.

4- RISK AND TITLE

The risk in and title to the goods shall normally pass to us only after the delivery of goods by you as per our advice and acceptance of the same by us. However, in cases of supply of equipments (AC / IT equipments for intance) which, as per the contract, have to be installed by the supplier on our premises / work sites etc., risk and title to such equipments shall pass to us only on satisfactory installation of the equipments by the supplier.

5)- INVOICING

a) Invoices should be submitted in duplicate against each order as soon as possible after delivery of goods and must contain the following information:

1. Purchase Order No. and Date.
2. Vendor Code.
3. Item Code.
4. Quantity delivered and invoiced and / or gross weight and net weight.
5. DIscounts, if any.
6. Unit Price.
7. Value.
8. Delivery Challan Reference.

9.All applicable taxes, duties etc. should be disclosed separately.

10.Advance payment received, if any, should be disclosed separately.

In case of excisable goods, the invoice must be as per prevalent central excise laws to enable the availment of CENVAT credit. Transporter's copy of such mvoice must be sent along with the consignment and the original for the buyer should be sent separately.

b. Invoices should accompany delivery challans as proof of delivery of goods.

c. VAT Registration Nos., E.C.C. No., PAN No., Service Tax Registration No. should be mentioned on the invoices.

6- PAYMENT

a) On sat factory completion of supply and / or commission / installation, the company will pay you at the rates, as approved, in full and final satisfaction of all your claims. Where rates are quoted per unit, quantities shall be measured and the prices to be paid shall be calculated according to approved rates. No payment or allowances will be made for any extra work done or material used without an endorsement on this Order and / or prior written approval in this regard is obtained from the Company's authorised representatives.

b) Payment will be made by Account Payee Cheques / Demand Draft or any other appropriate banking instrument / mechanism nonmally within one month of submission of bills or acceptance of n :aterial whichever is later, subject to other terms and conditions specific or unique to a particular purchase order.

c)In case of documents through Bank, advance set of documents must

7- TAXES & OTHER STATUTORY COMPLIANCES

a) Taxes will be deducted as per current law.

b)You shall comply with all the Laws, Rules and Regulations in force, and shall obtain all necessary approvals, permission, licences and / or registrations, etc. and maintain ucn registers and records as are prescribed thereunder. you shall keep such registers and records open or inspection by Company's Officials and shall supply copies / extracts of the same at their request.

8- INDEMNITY

a)You will ind

all actions, SUI!S and proceeding lake'! against he Company in respect of any legislation, statute or enactment and / or rules and regulations or by laws framed thereunder, by virtue of your failure to observe or non-fUlfillment of any statutory condition or by virtue of your negligence.

9- SAFETY OF COMPANY'S PROPERTY

Continue

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Whist in the premises due to any reasons whatsoever, if Compar y property is, in any way, damaged, destroyed or mutilated by you or your employees and / or agents, you will be totally responsible for the same and compensate the Company fer the loss.

10- MISCELLANEOUS

a) You hall utilise any of the assets of the Company, solely for the purpose for which they have been entrusted to you. All confidential information data, etc. that have been made available to you shall be utilised solely for the purpose of the work entrusted to you and shall not be disclosed to any third parties tinder any circumstances. The company reserves its right to purpose all or any remedies, including but not limited to a claim for liquidated dangers, for any breach of this confidentially clause by you and / or your employees.

b) You shall not claim any proprietary and / Of any other right in respect of the Company's Trademarks and or otner intellectual properly applied to / used in relation to the goods suppled by you hereunder. You shall apply the said Trademarks and / or intellectual property strictly t.por"' b relation to the goods that are to be supplied to the Company hereunder and such use shall be on behalf of the Company and shall not entitle you to claim any nght in especi !helacr.

c) Notwithstanding anything contained herein above, in the event that payment is being made against a Proforma !r.":l.r..a raised by you, then appropriate insurance covering the goods being supplied should be ensured.

d) The failure of the Company in not invoking the conditions hereof or the indulgence shown to you shall not be construed as the waiver by the Company of such conditions and prevent the Company from asserting or invoking the conditions at a later stage.

e) The Company reserves the right to require you to furnish any undertaking with regard to confidentiality and non-disclosure obligation pertaining to any information / data gathered during the course of fulfilling the order.

f) All electrical' tT equipments supplied to the Company including software must be licenced with adequate certification.

g) No e-mail communication will be accepted as a legal notice / legal claim served on the company. Such communicatlon must be served at the appropriatye address only by Registered Post and addressed to the appropriate authority.

h) Acceptance / execution of this order shall be deemed to be (a) a confinmation by you that no benefit, either in cash or in kind, has been provided by you to any officer or employee, or any relative I associate of any officer or employee, of the Company or of any of its associate companies, in order to secure this contract, and (b) an undertaking by you not to provide any benefit, either in cash or kind, to any such officer / employee / relative / associate as reward or consideration either for securing this contract or any other matter relating to this contract.

11- JURISDICTION

All disputes, claims and / or differences arising on any relating to this order are subject to the exclusive jurisdiction of the Courts at Pune.

FERRERO INDIA PVT LTD (IMSOFER DIVISION) **Ms NIHVA TECHNOLOGIES PVT LTD**

.....	..... Date: .....